

1 ENGROSSED SENATE
2 BILL NO. 1833

By: Thompson and Hamilton of
the Senate

3 and

4 West (Tammy) of the House
5
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7 An Act relating to the Supplemental Nutrition
8 Assistance Program (SNAP); directing the Department
9 of Human Services to seek certain federal waiver;
10 authorizing certain additional waiver; describing
11 waiver; specifying implementation deadline; requiring
12 submission of certain annual report; providing for
13 codification; and providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 241.5 of Title 56, unless there
17 is created a duplication in numbering, reads as follows:

18 A. The Department of Human Services, subject to receipt of
19 federal approval as described in subsection B of this section:

20 1. Shall prohibit the use of Supplemental Nutrition Assistance
21 Program (SNAP) benefits for the purchase of candy and soft drinks;
22 and

23 2. May exclude any other foods the Director of Human Services
24 deems a nonnutritive food item.

1 B. The Department shall submit a request for a federal waiver
2 to the United States Department of Agriculture Food and Nutrition
3 Service to seek authorization to implement the provisions of
4 paragraph 1 of subsection A of this section and may seek
5 authorization, either through the initial waiver request or through
6 one or more subsequent waiver requests, to implement the provisions
7 of paragraph 2 of subsection A of this section. Any such waiver
8 request shall include:

9 1. A justification citing:

- 10 a. public health concerns,
- 11 b. SNAP's statutory intent, and
- 12 c. cost savings to taxpayers;

13 2. An implementation plan ensuring that existing point-of-sale
14 systems used by retailers in this state have the ability to properly
15 enforce the restriction;

16 3. A strategy for education and outreach informing SNAP
17 recipients of alternative healthy food options; and

18 4. A reporting mechanism to track the impact of the waiver,
19 including spending patterns and health outcomes.

20 C. If the waiver is approved, the Department shall implement
21 the restrictions within six (6) months of receiving federal
22 authorization.

1 D. The Department shall electronically submit an annual report
2 to the President Pro Tempore of the Senate, the Speaker of the House
3 of Representatives, and the Governor that includes:

- 4 1. The status of the waiver request;
5 2. Data on SNAP spending patterns in this state; and
6 3. Any identified challenges or recommendations for further
7 policy action.

8 SECTION 2. This act shall become effective November 1, 2026.

9 Passed the Senate the 23rd day of March, 2026.

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11 _____
12 Presiding Officer of the Senate

13 Passed the House of Representatives the ____ day of _____,
14 2026.

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17 Presiding Officer of the House
18 of Representatives
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